

13. 9:00 AM CASE NUMBER: C25-00190

CASE NAME: BRIAN FLANIGAN VS. JOHN GIL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GIL, JOHN

TENTATIVE RULING:

Defendants' Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and shall serve and file notice of entry of the order. Plaintiff shall have 10 days from service of notice of entry of the order to file and serve an amended complaint.

Factual and Procedural Background

This case arises out of a motor vehicle collision that occurred on November 2, 2022, on Eastbound Highway 24 near Exit 10 in Orinda, Contra Costa County. Plaintiff alleges that Defendants John Gil and John Sophinos were working in the course and scope of their employment for Bay Area Carpet Cleaning when the collision occurred, and asserts a single cause of action for negligence. (Defs.' RJN, Ex. 1 [Complaint], ¶¶ 6, 14–18.) The applicable two-year statute of limitations under Code of Civil Procedure section 335.1 therefore expired on November 2, 2024.

This is Plaintiff's second action arising out of the November 2, 2022 collision. Plaintiff filed the first action on June 11, 2024 (Case No. C24-01525, the "2024 Action"), within the limitations period. (RJN, Ex. 2.) Plaintiff's counsel did not appear at the October 16, 2024 Case Management Conference in the 2024 Action, prompting the Court to issue an Order to Show Cause set for November 20, 2024. (RJN, Ex. 3.) Plaintiff's counsel did not appear at the November 20, 2024 OSC hearing either. The Court dismissed the 2024 Action that day. The minute order reflects: "No appearances. The Court dismisses this action without prejudice for failure to prosecute." (RJN, Ex. 4.) Although Code of Civil Procedure section 473(b) permits a party to seek relief from dismissal based on attorney fault within six months, no motion for relief under that provision was filed.

Plaintiff did not file this action (Case No. C25-00190, the "2025 Action") until January 23, 2025.

Defendants now demur to the complaint in the 2025 Action. Defendants argue that the Complaint is defective on its face because Plaintiff failed to commence this action within the applicable two-year statute of limitations under Code of Civil Procedure section 335.1, which requires a cause of action for "injury to ... an individual caused by the wrongful act or neglect of another" to be brought within two years. Defendants further argue that, although certain doctrines may toll the statute of limitations in appropriate circumstances, none applies here.

Legal Standard

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.) The Court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Id.*) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

Procedural Issues

Plaintiff's Overlength Opposition Brief

Plaintiff's opposition brief is 22 pages, exclusive of tables. This length is not permitted under California Rules of Court, rule 3.1113(d), and Plaintiff did not obtain leave of court before filing the overlength brief. Overlength briefs are considered late papers. (Cal. Rules of Court, rule 3.1113(g).) The Court has discretion to disregard an untimely filing. (See Cal. Rules of Court, rule 3.1300(d).)

Plaintiff filed an ex parte application on May 12, 2026 addressing the overlength brief. Plaintiff is admonished that a party is required to seek leave in advance of filing the paper. Nonetheless, in its discretion, the Court has reviewed and considered Plaintiff's oversized brief. The ex parte is GRANTED to that extent and is otherwise DENIED.

Plaintiff is admonished to comply with the page limitations set forth in California Rules of Court, rule 3.1113(d), in the future. If Plaintiff wishes to exceed these page limitations, Plaintiff must obtain leave of court in advance of filing pursuant to California Rules of Court, rule 3.1113(e).

Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code. Civ. Proc. § 430.41(a).)

Defendants made several attempts by telephone to meet and confer with Plaintiff's counsel as required by Code of Civil Procedure section 430.41(a), but did not receive a response prior to filing the demurrer. (Joseph Kim Declaration, ¶¶ 3, 4, 7, 9, 11, 12, Exs. B, C, E, F.)

The Court will nonetheless address the merits in the interest of judicial efficiency, but reminds counsel that compliance with statutory meet and confer requirements is expected in future motion practice and subsequent failures to comply may result in a continuance of the hearing on the subject motion.

Judicial Notice

The parties' unopposed judicial notice requests are granted and notice will only be taken to the extent permitted. (Evid. Code, § 452(d); *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.

Discussion

Equitable Tolling

"Equitable tolling is a judicially created doctrine that, where applicable, will 'suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness.'" (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 554-55.) "Broadly speaking, the doctrine applies '[w]hen an injured person has several legal remedies and, reasonably and in good faith, pursues one.'" (*Id.* at p. 555.) "Where a claim is time-barred on its face, the plaintiff must specifically plead

facts that would support equitable tolling." (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.)

"The doctrine of equitable tolling, however, only applies where the plaintiff has alternate remedies and has acted in good faith." (*Thomas v. Gilliland* (2002) 95 Cal.App.4th 427, 434.) For example, the doctrine applies where a plaintiff exercised his right to seek an administrative remedy and thereafter chose to file suit after the limitations period after the administrative agency deferred its investigation. (*Downs v. Department of Water & Power* (1997) 58 Cal.App.4th 1093, 1101.) As another example, the doctrine applies where a plaintiff files an action after pursuing a workers' compensation claim. (*Elkins v. Derby* (1974) 12 Cal.3d 410.) The doctrine does not apply where a plaintiff does not have alternative remedies and files a new action after a previous action is dismissed. (*Thomas, supra*, 95 Cal.App.4th at p. 434.)

Here, Plaintiff argues the statute of limitations is tolled under the doctrine of equitable tolling because he previously filed an action concerning the same November 2, 2022 motor vehicle collision on June 11, 2024 and within the two-year limitations period (the 2024 Action). That action was dismissed by the Court on November 20, 2024, after Plaintiff's counsel failed to appear at the October 16, 2024 Case Management Conference and the November 20, 2024 Order to Show Cause hearing. Plaintiff emphasizes that the November 20, 2024 dismissal occurred eighteen days after the two-year limitations period expired on November 2, 2024, with the result that any refiling after the dismissal would necessarily fall outside the limitations period, a sequence Plaintiff characterizes as the kind of "technical and unjust forfeiture" that equitable tolling is designed to prevent under *Addison v. State of California* (1978) 21 Cal.3d 313, 319, and *Bollinger v. National Fire Ins. Co.* (1944) 25 Cal.2d 399, 404.)

Plaintiff further contends Defendants had continuous notice of the claim through their insurer and counsel beginning in May 2024, that Defendants have identified no concrete prejudice from the delay, and that Plaintiff acted diligently throughout, including by attempting personal service, retaining a private investigator, and obtaining two ex parte orders for service by publication.

The cause of action for negligence is based on an auto accident that occurred on November 2, 2022. The cause of action is time barred on its face because this action was filed more than two years after the accident. Plaintiff was required to specifically plead facts that would support equitable tolling, which he did not. (*Long, supra*, 33 Cal.App.5th at p. 555.)

Beyond the pleading defect, the Court is not currently persuaded that this is one of the limited situations in which the doctrine of equitable tolling applies. The doctrine traditionally applies where a plaintiff has alternative legal remedies and opts to pursue one in good faith. Here, Plaintiff pursued his action in court and filed a second suit after the first was dismissed, a circumstance to which the doctrine has been held not to apply. (*Thomas, supra*, 95 Cal.App.4th at p. 434.)

Equitable Estoppel

Plaintiff further appears to argue that defendants are equitably estopped to assert the statute of limitations in this case. (See Opp., pp. 13: 17-24 and 26:5-7.)

Equitable estoppel applies after the limitation has run and addresses circumstances where a party will be estopped from asserting a statute of limitations defense because their conduct has induced the

plaintiff from initiating a lawsuit during the applicable statute of limitations period. (*Lantz v. Centex Homes* (2003) 31 Cal.4th 363, 383.) For estoppel to apply, "(1) The party to be estopped must know the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had the right to believe that it was so intended; (3) the party asserting the estoppel must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury." (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Plaintiff argues that Defendants are equitably estopped to assert the statute of limitations based on a June 11, 2024 email from defense counsel Christopher Patton stating, "we will accept service." (Defs.' RJN, Ex. 5 [DEF0010].) Plaintiff contends Defendants' subsequent reversal of that representation on November 20, 2024 induced delay and now precludes Defendants from asserting the limitations defense.

Even if the June 11, 2024 email were the proper subject of judicial notice, the Court is not persuaded that this correspondence supports an estoppel theory adequate to overcome the limitations bar. The dismissal of the 2024 Action was based on Plaintiff's counsel's nonappearance at two court hearings rather than on any service-related issue, and Plaintiff filed the 2024 Action within the limitations period on the same day as the Patton email. The relationship between defense counsel's service representations in June 2024 and the untimely filing of the 2025 Action in January 2025 is therefore not self-evident. In particular, the element of detrimental reliance would appear to require Plaintiff to plead facts showing that defense counsel's June 11, 2024 representations actually caused Plaintiff to take or refrain from some action that, in turn, caused the 2025 Action to be filed outside the limitations period. The Court does not resolve these questions on demurrer but identifies them as matters Plaintiff will need to address if equitable estoppel is to be pleaded in an amended complaint.

Leave to Amend

On the Court's first occasion to consider Defendants' demurrer, the Court is loath to sustain it without leave to amend, given the liberality with which leave to amend is permitted. (See, e.g., *Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given"].)

Here, although Plaintiff has not explained how the Complaint may be amended to cure the identified deficiencies, and notwithstanding the reservations expressed above, the Court will grant leave to amend for Plaintiff to attempt to plead a timely cause of action. Any amended complaint should plead facts supporting each element of the doctrine or doctrines on which Plaintiff intends to rely.

Conclusion

Defendants' Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and shall serve and file notice of entry of the order. Plaintiff shall have 10 days from service of notice of entry of the order to file and serve an amended complaint.

14. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY AND PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party's Notice of Withdrawal of Verified Petition filed May 8, 2026. The hearing is **VACATED**.

15. 9:00 AM CASE NUMBER: C25-03125
CASE NAME: JAMES GUIDRY VS. FELICIA PHO
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT**
FILED BY: PHO, FELICIA
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to **July 20, 2026, 9:00 am** in **Department 34**.

16. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

This matter is **CONTINUED**, pursuant to the Stipulation of the parties, to June 29, 2026.

17. 9:00 AM CASE NUMBER: MSC17-01220
CASE NAME: STATE FARM VS MILLER
***HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENFORCE SETTLEMENT**
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
TENTATIVE RULING:

Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed a Motion to Vacate Dismissal, Enforce Settlement and Enter Judgment on January 7, 2026 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on May 18, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about May 3, 2018 (the "Settlement Agreement"), the terms of which included payment by the defendant Tanika Channel Miller ("Defendant") in the amount of \$79,776.50, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Brian P. Tapper filed January 7, 2026 as part of the Motion to Enforce Settlement ("Supporting Declaration"), ¶2 and **Exhibit A** thereto (Settlement Agreement and Stipulation for Entry of Judgment).

Analysis